

sheriff by process of law to make inquiry of offences upon their oath, and it is for the service of the King and the commonwealth. And as it is said in the 10 El. 265. they are compellable to serve the law, and the Court: and their indictment or verdict is matter of record, and called *Verdictum*, and shall not be avoided by surmise or supposal, and no attain lies. And for this reason they shall not be impeached, for any conspiracy or practice, before the indictment: for the law will not suppose any unindifferent, when he is sworn to serve the King: and with this agrees the books in 22 Ass. 77. Assise, p. 12. 21 Ed. 3. 17. 16 H. 6. 19. 47 Ed. 3. 17. 27 H. 8. 2. F. N. B. 115 a. But it is otherwise of a witness; for if he conspire out of the Court, and after swear in the Court, his oath shall not excuse his conspiracy before; for he is a private person, produced by the party, and not returned by the sheriff, who is an officer sworn, and the jurors are sworn in Court as indifferent persons: and the law presumes, that every juror will be indifferent when he is sworn, nor will the law admit proof against this presumption.

2. It was resolved, that when the party indicted is convict of felony by another jury, upon "not guilty pleaded," there he never shall have a writ of conspiracy, but when the party upon his arraignment is *legitimo modo acquietatus*: but in the case at the Bar, the grand jury who indicted one William Price for the murder of Hugh ap William, the jury, who upon not guilty pleaded, convicted him, were charged in the Star-Chamber for conspiracy against him, and indicted and convicted, which manner of complaint was never seen before: for if the party shall not have a conspiracy against the indictors, when the prison is acquitted upon his indictment, *a multo fortiori* when he is lawfully convict, he shall not charge neither the grand inquest by whom he was indicted, nor the jury who found him guilty: for the law in such case doth not give any attain (B), for this that he was indicted by the oath of twelve men at the least, and found guilty by twelve: and in these cases, the King is the sole party to the proceedings against the prisoner: but on the other side, when a jury hath acquitted a felon or traitor against manifest proof, there they [24] may be charged in the Star-Chamber, for their partiality in finding a manifest offender not guilty, *ne maleficia remanerent impunita*. And it will be a cause of infinite vexation and occasion of perjury and smothering of great offences, if such averments and supposals shall be admitted after ordinary and judicial proceeding: and it will be a means *ad deterrendos et detrahendos juratores a servitio Regis*.

3. It was resolved that the said Barker who was Judge of Assise, and gave judgment upon the verdict of death, against the said W. P. and the sheriff who did execute him according to the said judgment, nor the justices of peace who did examine the offender, and the witnesses for proof of the murder before the judgment, were not to be drawn in question in the Star-Chamber, for any conspiracy, nor any witness, nor any other person ought to be charged with any conspiracy in the Star-Chamber, or elsewhere, when the party indicted is convicted or attain of murder or felony: and although the offender upon the indictment be acquitted, yet the Judge, be he Judge of Assise, or a justice of peace, or any other Judge, being Judge by commission and of record, and sworn to do justice, cannot be charged for conspiracy, for that which he did openly in Court as Judge or justice of peace: and the law will not admit any proof against this vehement and voilent presumption of law, that a justice sworn to do justice will do injustice; but if he hath conspired before out of Court, this is extrajudicial; but due examination of causes out of Court, and inquiring by testimony, *et similia*, is not any conspiracy, for this he ought to do; but subornation of witnesses, and false and malicious prosecutions, out of Court, to such whom he knows will be indictors, to find any guilty, &c. amounts to an unlawful conspiracy.

And records are of so high a nature, that for their sublimity they import verity in themselves; and none shall be received to aver any thing against the record itself; and in this point the law is founded upon great reason; for if the judicial matters of record should be drawn in question, by partial and sinister supposals and averments of offenders, or any on their behalf, there never will be an end of causes: but controversies will be infinite; *et infinitum in jure reprobatur*: and for this it is adjudged in

(B) Attaints abolished, stat. 6 Geo. 4. cap. 50. s. 60.